

#	Case Name	Tentative
50	<i>Dorantes vs. Alexander</i>	Defendant Mondragon's Demurrer to each cause of action of the Second Amended Complaint on the grounds of failure to state a cause of action [CCP §430.10d(e)] and uncertainty is OVERRULED. Defendant Mondragon's demurrers are based upon the argument that he was not an owner of the property and, therefore, cannot be liable under the causes of action asserted. This argument ignores the allegation of the Second Amended Complaint that plaintiffs paid their rent to Mandragon and he told them that he was an owner of the property. [SAC, ¶6] It is not the function of a demurrer to challenge the truthfulness of the complaint; for purposes of ruling on a demurrer, all facts pleaded in the petition are assumed to be true however improbable they may be. [<i>Aubrey v. Tri-City Hospital District</i> (2002) 2 Cal.4th 962, 966-967] To this end, the Court cannot consider facts outside those alleged in the Complaint, like those alleged in Mondragon's Statement of Relevant Facts in his Memorandum of Points & Authorities. Mondragon's relationship to the property needs to be ascertained before liability under the causes of action alleged can be ascertained. This will require the evaluation of evidence. The Court cannot do this on a demurrer. Mondragon's Demurrer to the Second Amended Complaint is OVERRULED. Defendant is ordered to answer by August 3, 2026. Mondragon is to give notice.